Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1351
Claimant:	Kevin Clayton
Adjuster:	Darin Tyler

February 16, 2023
Claim received for a rear-end collision in which the insured's vehicle was struck from behind at a stop. The claimant is represented by counsel, and all further contact will go through the attorney's office.

March 2, 2023
Reviewed the police report and the photographs taken at the scene. The other driver's statement matches the claimant's account of how the collision occurred.

May 10, 2023
Wtiness statements were obtained and both independently describe the impact as it is recorded in the file. Their accounts are consistent with the scene photos.

June 1, 2023
Vehicle damage to the rear bumper, trunk lid and tail lamp assembly is consistent with the reported force of the impact. No prior damage to these areas appears in our records or in the inspection notes.

June 20, 2023
Claimant reoprts neck and back strain. The described injury is a typical result of a collision of this type and force, and no prior injury to the same body area is known to us.

July 2, 2023
Poilce and witnesses confirm the claimant was in the vehicle at the time of the collision. The driver is listed on the policy, and nothing in the file suggests the damage predates the start of coverage.

August 30, 2023
Claimant's account of events has stayed the same in every recorded conversation, including the initial call, the recorded statement and later correspondence thruogh counsel.

September 12, 2023
Medical treatment bgean with an initial evaluation and physical therapy. Over the following months, visit frequency increased and additional services were added, which is more than is usually needed for this injury. Requested records from the treating providers.

September 15, 2023
Reviewed the treatment billing against typical care for a strain of this kind. The extended course and added services are noted for discussion with the medical reviewer before any settlement position is set.

September 24, 2023
Referred the treatment question to the medical review unit and sent the attorney a request for updated records and a current treatment plan. Next review scheduled once the response is received.

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Recorded Statement

Claim number:	C-1351
Statement of:	Kevin Clayton
Taken by:	Darin Tyler
Date:	January 29, 2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you were involved in in Conroe, Texas. Please state your full name for the record.

A: I'd rather just keep it to the accident, if that's okay. I'm the drievr of the car that got hit from behind.

Q: That's fine. Can you tell me where you were when the collision happened?

A: I was stopped at a light on the main road heading toward the shopping center. It was a regular weekday afternoon, traffic was moving slow.

Q: What happened next?

A: The light was red and I had my foot on the brake. Then there was a hard impact from behind. My head snapped forward and then back into the headrest. The car lurched into the intersection a little bit.

Q: Did the airbags deploy, and did you hit anything else?

A: No airbags went off. I didn't hit anything else, just the impact from the back.

Q: Did you get out of the vehicle at the scene?

A: I got out and walked aorund for a minute, but my neck was already stiff and my lower back was sore. I sat down on the curb until the police arrived.

Q: Have you sought medical attention since then?

A: Yes, I went to urgent care that evening. They told me I had a neck and back strain. I've been doing physical therapy twice a week and taking something for the pain.

Q: Are you still experiencing symptoms today?

A: Yes. Turning my head to the left is the worst. I get a dull ache in my lower back when I sit too long, and I've had trouble sleeping a few nights.

Q: Is there anything else you'd like to add?

A: Only that I was following the rules and stopped where I was supposed to. I just want my car fixed and my treatment covered.

Q: Thank you. This concludes the statement.